

Women

Republika ng Filipinas
Lungsod ng Baguio
SANGGUNIANG PANLUNGSOD

REGULAR MEETING HELD ON NOVEMBER 18, 1987

PRESENT:

Hon. Nicolas R. Tabora, Officer-in-Charge, Office of
the Vice Mayor, and Presiding Officer;
Hon. John G. Allan, Member;
Hon. Geronimo A. Evangelista, Sr., Member;
Hon. Leonora B. Guinid, Member;
Hon. Nelsonida U. Marrero, Member;
Hon. Loreto M. Pangilinan, Member;
Hon. Mariano D. Perez, Jr., Member;
Hon. Gladys A. Vergara, Member; and
Hon. Delfia V. Balajadia, Member.

ABSENT:

Hon. Carlito A. Corpus, Member.

Read R.A. No. 9710

*Trafficking RA 9208
of person*

ORDINANCE Numbered 66-87

PROVIDING PENALTIES FOR PROSTITUTION AND/OR SEXUAL
EXPLOITATION OF MINORS, AND FOR OTHER PURPOSES,

BE IT ENACTED BY THE SANGGUNIANG PANLUNGSOD NG BAGUIO
IN SESSION ASSEMBLED THAT:

SECTION 1. Definition of Terms - whenever used in this
ordinance, the following terms or phrase shall be taken and
understood in the sense indicated hereunder, unless the con-
text otherwise requires:

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- a. Minor - shall refer to any person under eighteen
(18) years of age.
 - b. Prostitution - shall mean the act of sexual inter-
course or lascivious conduct with another person of
the same or opposite sex, for monetary or other
consideration.
 - c. Sexual Exploitation - shall pertain to the satisfac-
tion of lust by any act other than sexual inter-
course, such as manipulation of sex organs, mastur-
bation, oral sex, or the employment, use, persuasion,
enticement, or coercion of any minor to indulge
in any sexual conduct, or engaging minors to perform
sexual acts, and/or similar acts, for monetary or
other consideration.
 - d. Pedophilia - shall mean pathological sexual interest
in children.
 - e. Relative - shall include the parents, adopting pa-
rents, step-parent, grandparent, foster parent or
guardian, uncle, aunt, granduncle, grandaunt, or any
other relative by consanguinity (whether full or half-
blood) or by affinity, within the sixth civil degree.

SECTION 2. Prostitution, Pedophilia and/or sexual exploi-
tation of Minors - Any person who shall avail of the service
of a minor for prostitution, pedophilia and/or sexual exploita-
tion shall suffer the penalty of imprisonment of 6 months or a
fine of not less than ONE THOUSAND PESOS (P1,000.00) or both
such fine and imprisonment at the discretion of the court.

SECTION 3. Legal Presumption - The following persons are presumed to engage in the prostitution/pedophilia/sexual exploitation of minors:

- a. Any person, who not being a relative of minor, is found alone under suspicious circumstances with the said minor inside the room and/or cubicle of an inn, hotel, motel, pension house, apartelle or other similar establishments.
- b. Any person, who, in the company of a minor not related to him, is found showing/exhibiting pornographic films.
- c. Any person receiving services from a minor in sauna parlor or bath, massage clinic, health club and other similar establishments.

SECTION 4. Corruption of Minors - Any person who shall promote, facilitate or induce the prostitution, pedophilia and/or sexual exploitation of minors thru coercion, deceits or other means for his or her benefit shall suffer the same penalty provided in Section 2 hereof.

SECTION 5. Liability of owner, operator, manager, administrator, caretaker or tender of any hotel, motel apartelle, pension house, inn, as well as bars or baths, massage clinics, lounges, disco clubs, sauna parlors or baths, massage clinics, operator, manager, administrator, caretaker or tender of any hotel, motel, apartelle, pension house, inn, as well as bars, nightclubs, cocktail lounges, disco clubs, sauna parlors or baths, massage clinics, health clubs and other similar establishments who admits, allows, permits or otherwise neglect to prevent the entry and stay of a minor into said place to facilitate the commission of the acts penalized under Section 2 hereof shall be liable for imprisonment of 6 months or a fine of ONE THOUSAND PESOS (P1,000.00) or both such fine and imprisonment at the discretion of the court.

SECTION 6. Neglect/Failure to report to authorities - Any person who knows of the sexual exploitation/or prostitution, pedophilia, of a minor but fails, refuses or neglects to denounce, report or inform the proper authorities of said exploitation/or prostitution, pedophilia, shall suffer the penalty of imprisonment of not more than 3 months or a fine not exceeding FIVE HUNDRED PESOS (P500.00) or both fine and imprisonment at the discretion of the court.

SECTION 7. Rehabilitation of Minors - The minor shall not be criminally prosecuted but shall be placed under the rehabilitation or reformation and committed to the care of his or her parents, relatives or family friend or to the Department of Social Welfare and Development (DSWD) subject to such condition as the court may impose.

In case the offender is a minor, he shall be prosecuted in accordance with Pres. Decree 603 (Child and Youth Welfare Code), as amended.

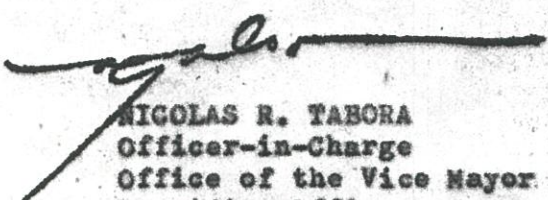
SECTION 8. Responsibility of Mayor and Police Authorities - It shall be the responsibility of the Mayor in coordination with the police authorities to strictly enforce the provision of this Ordinance.

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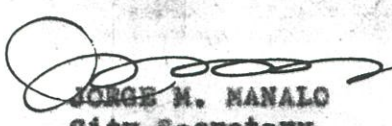
SECTION 9. It shall be the obligations of the City Government of Baguio to coordinate with the proper governmental agencies and socie-civic organizations towards the full rehabilitation of any victim of child abuse or exploitation.

SECTION 10. Effectivity - This ordinance shall take effect thirty (30) days after its approval.

Approved. One member abstained from voting.


NICOLAS R. TABORA
Officer-in-Charge
Office of the Vice Mayor
Presiding Officer

Attested:


JORGE M. MANALO
City Secretary

APPROVED:

ORIGINAL SIGNED
FRANCISCO A. PARAAZ
Officer-In-Charge
Office of the City Mayor
25 November 1987